

2:00 PM

LINE: 6

24-CLJ-02154

DISCOVER BANK VS. TERRY OLGIN

DISCOVER BANK
TERRY OLGIN

HARVEY M. MOORE

**PLAINTIFF DISCOVERY BANK’S MOTION TO (1) SET ASIDE NOTICE OF SETTLEMENT AND (2) ENTER JUDGMENT
PURSUANT TO STIPULATION**

TENTATIVE RULING:

Plaintiff Discover Bank’s Motion to Set Aside Notice of Settlement and Enter Judgment is **DENIED without prejudice** for lack of proof of service.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the County shall prepare for the Court’s signature a written order consistent with this ruling, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE: 7

25-CIV-02956

HELEN NASSER ELDDIN, ET AL VS. DAVID SZETO, ET AL

HELEN NASSER ELDDIN
DAVID SZETO

NICOLAS V. SAENZ
EDWARD C SINGER

DEFENDANTS DARLING AMPIE, DAVID SZETO, GERMAN LEDEZMA, LEDEZMA & SONS, INC., AND MAHOGANY INVESTMENTS PACIFIC'S DEMURRER TO PLAINTIFF HELEN NASSER ELDDIN and PCHRG, INC.'s FIRST AMENDED COMPLAINT

TENTATIVE RULING:

The demurrer filed by Defendants David Szeto, Mahogany Investment Pacifica, LLC, German Ledezma, Darling Ampie, and Ledezma & Sons, Inc. to Plaintiffs PCHRG, Inc. and Helen Nasser Elddin's First Amended Complaint is **SUSTAINED in part** and **OVERRULED in part**.

Plaintiffs PCHRG, Inc. and Helen Nasser Elddin may file a second amended complaint no later than 10 days after service of written notice of entry of the formal order. (Cal. Rules of Court, rule 3.1320(g).)

LEGAL STANDARD

The purpose of a demurrer is to test the legal sufficiency of the facts alleged in the operative complaint to determine whether they state a cause of action under any legal theory as a matter of law. (*New Livable California v. Association of Bay Area Governments* (2020) 59 Cal.App.5th 709, 714-715; *Genis v. Schainbaum* (2021) 66 Cal.App.5th 1007, 1014.) A demurrer may be made to the entire complaint or to any cause of action stated therein. (Code Civ. Proc., § 430.50, subd. (a).)

To properly state a cause of action, a complaint must allege every element of that cause of action. (*Shaeffer v. Califia Farms, LLC* (2020) 44 Cal.App.5th 1125, 1134.) A demurrer must dispose of an entire cause of action to be sustained. (*Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 119.)

In determining whether a complaint states facts sufficient to constitute a cause of action, the Court accepts the factual allegations of the complaint and matters that may be judicially noticed, but disregards contentions, deductions, and conclusions of law. (Code Civ. Proc., § 430.30, subd. (a); *Richtek USA, Inc. v. uPI Semiconductor Corp.* (2015) 242 Cal.App.4th 651, 658.) The complaint must be given a reasonable interpretation and read as a whole, with its parts considered in context. (*Herman v. Los Angeles County Metropolitan Transportation Authority* (1999) 71 Cal.App.4th 819, 824.) The complaint is construed liberally (Code Civ. Proc., § 452), and facts that may be inferred from those expressly alleged are accepted as true. (*Cundiff v. GTE California, Inc.* (2002) 101 Cal.App.4th 1395, 1405.)

COMPULSORY CROSS-COMPLAINT BAR
